

Fareed v. State of U.P.

High Court of Judicature at Allahabad · Division Bench (Court No. 39) · 22 August 2023 · 2023:AHC:168731-DB · WRIT - C No. - 28358 of 2023 · **Writ dismissed as withdrawn without deciding the Supply Code remedy.**

HEADNOTE

Allahabad High Court dismissed Writ-C No. 28358 of 2023 as withdrawn after the petitioner sought liberty to pursue the statutory remedy in accordance with law. Counsel for respondent nos. 2 and 3 had submitted that the petitioner had approached the wrong forum and that the remedy lay under the Electricity Supply Code. No clause was identified or construed.

FACTUAL SUMMARY

Fareed filed Writ-C No. 28358 of 2023 before the Allahabad High Court against the State of U.P. and four others. After counsel for the petitioner had argued the matter at some length, he sought leave to withdraw the petition with liberty to pursue the statutory remedy in accordance with law. Counsel for respondent nos. 2 and 3 submitted that the petitioner had approached the wrong forum and that the remedy lay under the Electricity Supply Code.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

writ withdrawn without construing the Supply Code

HOLDING

On the petitioner's request the writ was dismissed as withdrawn. The Court did not decide the submission of counsel for respondent nos. 2 and 3 that the remedy lay under the Electricity Supply Code, and it identified no clause. ¶ 1-3

PRINCIPLE TAGS

procedural-listing-no-construction

The Division Bench only recorded dismissal of the writ as withdrawn. It did not construe any clause of the Electricity Supply Code. ¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE MERITS OF THE PETITIONER'S GRIEVANCE, WHICH THE ORDER DOES NOT DESCRIBE.

¶ 1-3

NOT DECIDED — WHETHER THE REMEDY LAY UNDER THE ELECTRICITY SUPPLY CODE AND UNDER WHICH CLAUSE.

Raised by counsel for respondent nos. 2 and 3 and left open when the writ was dismissed as withdrawn. ¶ 2-3